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Case Number: 25STCV37365 Hearing Date: August 5, 2026 Dept: 509

Antonio Margarito Utuy Utuy v. Mastro's Restaurants LLC

MOTION TO COMPEL ARBITRATION

MOVING PARTY: Defendant Mastro's Restaurants LLC

RESPONDING PARTY(S): Plaintiff Antonio Margarito Utuy Utuy

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is an employment action. Plaintiff Antonio Margarito Utuy Utuy (Plaintiff) worked for defendant Mastro's Restaurants LLC (Defendant). Plaintiff alleges wrongful constructive termination among thirteen other causes of action stemming from alleged discrimination and retaliation.

Defendant now moves to compel Plaintiff to arbitrate the dispute. Plaintiff opposed.

TENTATIVE RULING:

Defendant's Motion to Compel Arbitration is GRANTED. The action is stayed pending the results of the arbitration.

A Status Review/OSC re: Dismissal is set for August 5, 2027, at 8:30 a.m.

Defendant to give notice, unless waived.

DISCUSSION:

Motion to Compel Arbitration

1. Legal Standard

"[T]he petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence" (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284). "In determining whether an arbitration agreement applies to a specific dispute, the court may examine only the agreement itself and the complaint filed by the party refusing arbitration [citation]. The court should attempt to give effect to the parties' intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made." (Weeks v. Crow (1980) 113 Cal.App.3d 350, 353.) "Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute." (California Correctional Peace Officers Ass'n v. State (2006) 142 Cal.App.4th 198, 205.)

"[A] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284.)

"If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies. . . ." (Code Civ. Pro. §1281.4.)

2. Objections to Evidence

Defendant submits objections to evidence.

This Court is unaware of any legal authority which requires a court to rule on evidentiary objections on a motion, except as to a motion for summary motion/adjudication (Code Civ. Pro. § 437c, subd. (q)) or a special motion to strike (Code Civ. Pro. § 425.16, subd. (b)(2)); see also, Sweetwater Union High School Dist. v. Gilbane Building Co. (2019) 6 Cal.5th 931, 947-949.)

As such, this Court respectfully declines to rule on these objections. This Court is well aware of the rules of evidence, and to how much weight, if any, should be given to any of the proposed evidence.

3. Analysis

California has a strong public policy in favor of arbitration as an expeditious and cost-effective way of resolving disputes. "Even so, parties can only be compelled to arbitrate when they have agreed to do so." (Avila v. S. California Specialty Care, Inc. (2018) 20 Cal. App. 5th 835, 843.) "The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement." (Ibid.)

An arbitration agreement is a contractual agreement. "General contract law principles include that '[t]he basic goal of contract interpretation is to give effect to the parties' mutual intent at the time of contracting. [Citations.] ... The words of a contract are to be understood in their ordinary and popular sense." [Citations.] (Garcia v. Expert Staffing W., 73 Cal. App. 5th 408, 412–13.)

A. Existence of An Arbitration Agreement

a. Defendant's Initial Burden

Defendant has the initial burden of producing “prima facie evidence of a written agreement to arbitrate the controversy.” (Gamboa v. Ne. Cmty. Clinic (2021) 72 Cal. App. 5th 158, 165.) “[I]t is not necessary to follow the normal procedures of document authentication.” (Condee v. Longwood Mgmt. Corp. (2001) 88 Cal. App. 4th 215, 218.)

The Declaration of Laura Jasso, a Senior Director of Human Resources of Landry’s Management, L.P., which provides various management services for Mastro’s Restaurants, LL states:

Upon Plaintiff’s hire on or about January 16, 2024, Plaintiff was subject to the onboarding process described above and, via Kenexa, Plaintiff was provided a copy of the Arbitration Agreement in both English and Spanish. On January 16, 2024, while logged into Kenexa, Plaintiff executed the Agreement. The printed date underneath the signature block, “1/16/2024,” indicates the date the electronic signature was made by Plaintiff. Given the unique login and password process for signing documents in Kenexa, the electronic signature was made by Plaintiff on January 16, 2024.

(Jasso Decl. ¶16.)

In relevant part, the Arbitration Agreement provides that “the parties hereby agree that any and all disputes, claims or controversies between the parties, including but not limited to any dispute arising out of or relating to this Agreement, the employment relationship between the parties, or the formation or termination of the employment relationship, or which arise after the termination of the employment relationship, which are not resolved by their mutual agreement shall be resolved by final and binding arbitration by a neutral arbitrator.” (Jasso Decl., Exh. A at p. 1.) There appears no dispute that this provision generally covers the action here.

The Agreement also expressly states that arbitration is to be governed by the FAA. (Jasso Decl., Exh. A at p. 1; see Davis v. Shiekh Shoes, LLC (2022) 84 Cal. App. 5th 956, 963 [finding the FAA applies “if it is so stated in the agreement.”].) Defendant has therefore met its initial burden.

b. Plaintiff’s Burden

This switches the burden to Plaintiff, who “bears the burden of producing evidence to challenge the authenticity of the agreement.” (Gamboa, supra, 72 Cal.App.5th at 165.) Plaintiff can do this in “several ways,” including by “declar[ing] under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (Ibid.)

In support of his opposition, Plaintiff attests to a series of events:

On or around January 16, 2024, I went in person to Mastro’s Beverly Hills located at 246 N Canon Dr Wemans, Beverly Hills, California 90210. There I met with Chef Omar.

I told Chef Omar that I was unable to complete all the required documents.

Chef Omar said he would complete the required information for me.

Chef Omar asked questions. I responded and he input the details in the computer.

Chef Omar did not present me any documents to review or sign.

I do not recall providing an electronic signature.

Chef Omar did not present me any documents to review or sign.

Chef Omar said the documents were on the computer and said he completed the information for me.

...

I did not electronically sign the agreement.

No arbitration agreement was presented, or even mentioned, during the onboarding process with Chef Omar.

(Utuy Utuy Decl. ¶¶8-24.)

Plaintiff has therefore met his burden to challenge the existence of the arbitration agreement.

c. Final Resolution

The burden now lies on Defendant to “establish with admissible evidence a valid arbitration agreement between the parties.” (Gamboa, supra, 72 Cal.App.5th at p. 165.) In determining whether Plaintiff signed the agreement by a preponderance of the evidence, this Court must necessarily sit as the trier of fact and resolve evidentiary conflicts. (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284.) “[N]otwithstanding the public policy favoring arbitration, arbitration can be imposed only as to issues the parties agreed to arbitrate.” (Ajamian v. CantorCO2e, L.P.¿(2012) 203 Cal.App.4th 771, 790.) “[N]o public policy favors requiring arbitration of issues that the parties have not agreed to arbitrate.” (Ford Motor Warranty Cases (2023) 89 Cal.App.5th 1324, 1331.)

In reply, Defendant turns to the declaration of Chef Omar Rogriguez (Chef Omar), the assistant sous chef Plaintiff alleges forged his signature on the Agreement. (Rodriguez Decl. ¶¶1-2.) Chef Omar states “I do not electronically sign onboarding documents on behalf of employees.” (Id. at ¶7.) “I recall Plaintiff using his cellphone during the onboarding process to complete onboarding documents electronically.” (Id. at ¶8.) “I do not recall Plaintiff ever stating that he did not understand the onboarding documents or the onboarding process, or that he needed assistance because he could not understand the documents.” (Id. at ¶9.) “I never electronically signed any onboarding documents on Plaintiff’s behalf.” (Id. at ¶10.)

Further, in Ruiz v. Moss Bros. Auto Grp. (2014) 232 Cal.App.4th 836, 844, (Ruiz) the issue was whether an electronic signature was the “act of” the employee. The employee did not recall signing the agreement and the employer provided only a Declaration from the employer’s business manager “offer[ing] her unsupported assertion that [the employee] was the person who electronically signed the 2011 agreement.” (Ibid.) The court held that “[i]n the face of [the employee’s] failure to recall electronically signing the 2011 agreement”, and the employer’s failure to adequately authenticate the agreement, the electronic signature “was insufficient to support a finding that the electronic signature was, in fact, ‘the act of’ [the employee].” (Ibid.; see Civ. Code, § 1633.9, subd. (a).) The court noted that authenticating an electronic document or signature is “not a difficult evidentiary burden to meet,” but that it was not met in that case. (Ruiz at p. 844.)

However, in Espejo v. S. California Permanente Med. Grp., (2016) 246 Cal.App.4th 1047, 1053, (Espejo) the court came to the opposite conclusion of Ruiz, finding the employer had met its burden “by attaching to their petition a copy of the purported arbitration agreement bearing Espejo’s electronic signature.” (Id. at p. 1060.) Unlike in Ruiz, the Espejo defendant “had sufficiently security precautions regarding transmission and use of an applicant’s unique username and password, as well as the steps an applicant would have to take to place his or her name on the signature line of the employment agreement.” (Id. at p. 1062.)

Here, the facts presented are materially similar to those in *Espejo*, not *Ruiz*. The Defendant provided significant evidence that only Plaintiff could have affixed his signature to the Agreement. (Jasso Decl. ¶¶2-5.) Jasso's declaration regarding the Kenexa account, including the process of setting up and using a unique login and password, sufficiently demonstrated there were security precautions regarding transmission and use of an applicant's unique username and password. Chef Omar's testimony appears to corroborate such evidence. Therefore, there is sufficient evidence that the Plaintiff's electronic signature appears on the Agreement.

In the end, the Court finds Defendant's evidence persuasive. Considering the totality of the evidence before it, the Court finds by a preponderance of the evidence that Plaintiff electronically signed the Arbitration Agreement presented. Therefore, the parties agreed to arbitration.

B. Defenses to Enforcement

Plaintiff argues the Agreement should be disregarded based on principles of unconscionability. Unconscionability has "both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results. (*Sanchez v. Valencia Holding Company, LLC* (2015) 61 Cal.4th 899, 910.) Under California law, an arbitration agreement must be in some measure both procedurally and substantively unconscionable in order for the agreement to be unenforceable. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 (*Armendariz*); *De La Torre v. CashCall, Inc.* (2018) 5 Cal.5th 966, 982.) "But they need not be present in the same degree. . . . [T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Armendariz*, supra, 24 Cal.4th at p. 114.)

1. Procedural Unconscionability

First, Plaintiff argues the agreement is procedurally unconscionable because it was a contract of adhesion—it was offered on "take-it-or-leave-it-basis" as a condition of employment and he had no ability to negotiate its terms. Plaintiff alleges that this contract of adhesion should invalidate the Agreement. "The term [contract of adhesion] signifies a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it." [Citation]. (*Armendariz*, supra, 24 Cal.4th at p. 113.)

Here, the Court agrees with Plaintiff that the dynamic here represents a classic contract of adhesion, but only to the degree that is typical in the employer-employee context. [FN 1] Therefore, the "take it or leave it" nature of the agreement is sufficient to establish "some degree of procedural unconscionability." (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 915). This means the substantive terms of the agreement must be scrutinized to ensure they are not manifestly unfair or one-sided. (*Ibid.*)

2. Substantive Unconscionability

Plaintiff also contends the Agreement is substantively unconscionable. "'Substantive unconscionability' focuses on the terms of the agreement and whether those terms are 'so one-sided as to 'shock the conscience.'" (*Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1330.)

"[A]n arbitration agreement is lawful if it '(1) provides for neutral arbitrators, (2) provides for more than minimal discovery, (3) requires a written award, (4) provides for all of the types of relief that would otherwise be available in court, and (5) does not require employees to pay either unreasonable costs or any arbitrators' fees or expenses as a condition of access to the arbitration forum. Thus, an employee who is made to use arbitration as a condition of employment 'effectively may vindicate [his or her] statutory cause of action in the arbitral forum.' [Citation.]" (*Armendariz v. Foundation Health Psychcare Services, Inc.*, supra, 24 Cal.4th at p. 102.)

Here, Plaintiff alleges the arbitration provision fails the Armendariz test because it is overbroad, fails to incorporate the JAMS rules, and limits Plaintiff's right to bring representative actions. Plaintiff asserts that the inclusion of these terms renders the Agreement fatally unconscionable.

a. Overbreadth

Plaintiff identifies two purportedly unconscionable aspects of the Agreement: (1) it would require arbitration of claims that do not have to do with Plaintiff's employment; and (2) would require arbitration of claims occurring for an indefinite duration. Plaintiff's authority for arguing that these two aspects of the Agreement are unconscionable is *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312 (*Cook*).

Plaintiff's reliance on *Cook* is misplaced. In *Cook*, the arbitration agreement was reached between the plaintiff and her employer, the University of Southern California (USC), a large organization that provides different types of services in the Los Angeles area, including services regarding medical treatment, education, and sports events. The court in *Cook* characterized the arbitration agreement as one "of infinite duration requir[ing] an employee to arbitrate all claims against the employer, its agents, affiliates, and employees irrespective of whether they arise from the employment relationship." (*Cook*, supra, 102 Cal.App.5th at p. 316.) The agreement between the plaintiff employee and USC stated:

Therefore, the University and the faculty or staff member named below ('Employee') agree to the resolution by arbitration of all claims, whether or not arising out of Employee's University employment, remuneration or termination, that Employee may have against the University or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise; and all claims that the University may have against Employee.

(*Cook*, supra, 102 Cal.App.5th at p. 317.)

The trial court found that the agreement "would include claims completely unrelated to [the plaintiff's] employment, stating that if [the plaintiff] was the victim of a botched surgery in a USC hospital in 15 years, her claims could be subject to the arbitration agreement." (*Cook*, supra, 102 Cal.App.5th at p. 318, internal quotation marks omitted.) "The trial court also held the agreement lacked mutuality because it required [the plaintiff] to arbitrate her claims against USC and all of USC's 'related entities' including officers, trustees, administrators, employees, and agents. However, in contrast, the agreement only required USC to arbitrate its claims against [the plaintiff] but did not require USC's 'related entities' to arbitrate their claims against [the plaintiff]." (*Id.* at p. 319.)

The appellate court agreed with the trial court's conclusion that the three aspects of the agreement were unconscionable. The appellate court found that the provision of the agreement allowing third-party beneficiaries to arbitrate claims against the plaintiff employee demonstrated a lack of mutuality:

The agreement requires [the plaintiff] to arbitrate any and all claims she may have against USC "or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise." However, the agreement does not require USC's "related entities" to arbitrate their claims against [the plaintiff].

USC argues that both federal and California caselaw have recognized that nonsignatories may enforce arbitration agreements as third-party beneficiaries, and the agreement cannot be unconscionable simply because it provides benefits to third parties. The concern here is not that the arbitration agreement provides ancillary benefits to third parties. The concern is that the agreement provides benefits to broad swaths of third-party beneficiaries only in favor of USC without any showing of justification for this one-sided treatment. This confers a benefit on USC and its broadly-defined "related entities" that is not mutually afforded to [the plaintiff]. USC does not attempt to justify this one-sidedness. No explanation is offered as to why [the plaintiff] should be required to give up the ability to ever bring claims in court against a USC employee that are unrelated to USC or her employment there.

(Cook, supra, 102 Cal.App.5th at pp. 326-327.)

The non-mutual provision was found unconscionable, at least in part, because it existed in a contract that applied for an infinite amount of time to all claims, even those not arising from the plaintiff's employment. The court in Cook again made clear that the non-mutual provision was unconscionable because USC had "offered no justification for this one-sided treatment" that would effectively require the plaintiff to arbitrate any and all claims she might have against any USC employees, even if those claims arose decades after her employment ended. (Cook, supra, 102 Cal.App.5th at p. 328.)

Like Cook, the Agreement here does require arbitration of claims that might arise between Plaintiff and certain non-signatories, including Defendant's "officers, directors, employees, owners, shareholders, members, agents, representatives, benefit plans, sponsors, fiduciaries, parents, subsidiaries, or affiliated entities." (Jasso Decl., Exh. A at p. 1.)

The Agreement is likewise broad stating:

the parties hereby agree that any and all disputes, claims or controversies between the parties, including but not limited to any dispute arising out of or relating to this Agreement, the employment relationship between the parties, or the formation or termination of the employment relationship, or which arise after the termination of the employment relationship, which are not resolved by their mutual agreement shall be resolved by final and binding arbitration by a neutral arbitrator.

(Jasso Decl., Exh. A at p. 1, emphasis added.)

However, because an employee's interactions with his employer are typically limited to the employment relationship, an arbitration agreement that calls for a scope of arbitrable claims that extends beyond employment disputes will nonetheless, as a general matter, be limited to employment disputes. Here, given the dearth of evidence on this question, the notion that Plaintiff could interact with Defendant in a way that would allow for a non-employment legal dispute to arise is too speculative a possibility to justify the finding of unconscionability.

As the trial court in Cook suggested in its ruling, the agreement in Cook was unconscionable because of the nature of USC's operations: "if [the plaintiff] was the victim of a botched surgery in a USC hospital in 15 years, her claims could be subject to the arbitration agreement." (Cook, supra, 102 Cal.App.5th. at p. 318, internal quotation marks omitted.) Along the same lines, if the plaintiff in Cook had decided to pay for education for herself or family members at USC, any of the plaintiff's legal claims arising from that education would likely have been subject to the employment arbitration agreement; likewise, under the arbitration agreement in Cook, the plaintiff would have been required to arbitrate her personal injury claims if she were injured by one of USC's employees or agents when attending a USC football game. No analogous situation exists here. No evidence or argument has been submitted that would allow this Court to analogize Defendant's business to a large university offering different types of services throughout the community. Thus, the notion that a dispute arising from conduct between the parties or between Plaintiff and one of Defendant's agents, employees, or officers, etc. outside of the employment context is simply too implausible to demonstrate any real substantive unconscionability here.

b. Failure to Include JAMS Rules

Next, Plaintiff argues that he was not given the specific JAMS rules that would apply to this action. However, Plaintiff makes no showing that a specific application of JAMS rules would be substantively unconscionable.

The California Supreme Court has held that the failure to attach the arbitration rules would not render the agreement unconscionable unless "[t]he plaintiff's unconscionability claim depended in some manner on the arbitration rules in question." (Baltazar v. Forever 21, Inc. (2016) 62 Cal.4th 1237, 1246; see also Nguyen v. Applied Medical Resources Corp. (2016) 4 Cal.App.5th 232, 249 ["Baltazar removed the nonprovision or nonattachment of the AAA rules as a basis for increasing the procedural unconscionability level."].) It is not argued how Plaintiff's unconscionability depends on the

arbitration rules. Therefore, the Agreement is not substantively unconscionable by failing to identify the specific JAMS arbitration rules to be applied in the subsequent arbitration proceeding.

c. PAGA Waiver

Finally, a clause prohibiting employees from bringing class or collective actions is substantively unconscionable because “only employees bring [such claims] against employers.” (Navas v. Fresh Venture Foods, LLC (2022) 85 Cal.App.5th 626, 636.) Here, the Agreement states that:

The parties expressly agree that each may bring and pursue claims against the other only in their individual capacities, and not on behalf of, with respect to, joined with, and/or as a part of, any class action, collective action, and/or representative action, except as set forth herein. The Parties agree that in the event Employee brings a claim under California's Private Attorneys General Act of 2004 (“PAGA”), the Employee may pursue claims for relief as a representative of the California Labor & Workforce Development Agency, but only based on alleged violations of law Employee personally suffered. Such individual PAGA claims shall be arbitrated consistent with this Agreement. Employee agrees they will not at any time seek to represent other employees, or join the claims of other employees, or obtain remedies for alleged legal violations suffered by other employees, even if Employee claims to have suffered the same type of alleged legal violation as any other employee.

(Jasso Decl., Exh. A at p. 2.)

This provision is therefore substantively unconscionable.

3. Severability

Given the substantive unconscionability, the Court must assess whether the portions of the Agreement which are substantively unconscionable are severable. Civil Code, section 1670.5, subdivision (a) provides general guidance regarding the severability of contract provisions:¿

If the court as a matter of law finds the contract or any clause of the contract to have been unconscionable at the time it was made the court may refuse to enforce the contract, or it may enforce the remainder of the contract without the unconscionable clause, or it may so limit the application of any unconscionable clause as to avoid any unconscionable result.

The Armendariz Court, in determining whether an unconscionable provision in an employment contract was severable, elaborated:¿

Two reasons for severing or restricting illegal terms rather than voiding the entire contract appear implicit in case law. The first is to prevent parties from gaining undeserved benefit or suffering undeserved detriment as a result of voiding the entire agreement. . . . Second, more generally the doctrine of severance attempts to conserve a contractual relationship if to do so would not be condoning an illegal scheme. [Citations.] The overarching inquiry is whether ‘the interests of justice . . . would be furthered’ by severance. [Citation.]”

(Armendariz v. Foundation Health Psychcare Services, Inc., supra, 24 Cal.4th at pp. 123-124.)¿

“Significantly, the strong legislative and judicial preference is to sever the offending term and enforce the balance of the agreement: Although ‘the statutes appear to give a trial court discretion as to whether to sever or restrict the unconscionable provision or whether to refuse to enforce the entire agreement[.]’ ... it also appears to contemplate the latter course only when an agreement is “permeated” by unconscionability.’[Citation]” (Dotson v. Amgen, Inc., supra, 181 Cal.App.4th 975, 986.)

Here, while the Agreement does contain a term that is significantly substantively unconscionable, the provision is severable. Although the class action waiver and its restriction on representative actions is a significantly unconscionable term, the agreement, taken as a whole, is not “permeated” by unconscionability. Further, given “the strong legislative and judicial preference [] to sever the offending term and enforce the balance of the agreement” the Court, does so here. Therefore, the class action waiver and PAGA limitations outlined in the Agreement are severed and stricken from the Agreement to limit the degree of substantive unconscionability. As a result, only a minimal amount of substantive unconscionability remains in the Agreement.

This, therefore, leaves us with only a minimal finding of both procedural and substantive conscionability. This is not enough under the sliding scale approach to invalidate the agreement as a whole.

Accordingly, Defendant’s Motion to Compel Arbitration is GRANTED.

IT IS SO ORDERED.

Dated: August 5, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Indeed, although Plaintiff is a native Spanish speaker, the Agreement was presented to him in both English and Spanish. (Jasso Decl. ¶6.)

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.